

# noted at inquest

p. 30

By Toni Locy  
GLOBE STAFF

Three police officers testifying yesterday at an inquest into the February death of a Dorchester woman said they noticed injuries on her face, some of which were not mentioned in an autopsy report by the Suffolk County medical examiner's office, the Globe has been told.

The inquest, a closed hearing that is expected to last all week, was requested by District Attorney Newman Flanagan after a June 3 Boston Globe report on the case involving the death of Kasha Blount, a 19-year-old pregnant woman. The Globe reported that police and officials in the medical examiner's office said in interviews that they had been waiting for their counterparts to provide answers about Blount's death, despite their strong suspicions of foul play.

The officers, testifying before Judge Gerald Alch in Dorchester District Court, were among the first people to arrive at Bernard Street in St. Mary's Cemetery early on Feb. 17, finding Blount's fully clothed body lying face up on the ground, according to a police report.

The Globe was told that one officer testified yesterday that he had noticed dried blood on Blount's nose, another officer said one side of her head appeared to have been swollen and a third recalled that Blount's left eye was swollen and looked as if it had been bleeding.

The autopsy report, a copy of which was obtained by the Globe, did not mention any swelling on the head or blood coming from Blount's left eye. The report, however, noted "a scant amount of blood present on the right side of head and left temple" and "abundant froth" coming from Blount's nose.

Once the inquest is completed, Alch will prepare a report detailing his findings and any recommendations about how the case should be handled, including whether any

criminal charges should be filed. The report will be submitted to the district attorney.

Blount, who lived with her mother, was last seen alive Feb. 16 leaving work at a Dedham clothing store where she was a sales clerk. Blount, who was six months' pregnant, told a co-worker she was meeting the baby's father to shop for toys after work.

Fourteen hours later, Blount's body was found in the cemetery.

Dr. Gerald Feigin, an associate medical examiner, has said he could not determine with certainty how Blount died and could not rule that her death was a homicide.

Feigin, who insists that he conducted every possible test to determine how Blount died, said he thinks it is up to police to find a witness who can help solve the case.

The police said they originally treated the case as a "sudden death" and were waiting for the medical examiner's office to rule Blount's death a homicide before launching a full-scale investigation.

Blount's mother, Phyllis Johnson, 39, has said that she believes the police and medical examiner's office did not put a high priority on investigating her daughter's death because they viewed her as "just another" black child and that all black children are on drugs.

The medical examiner's office allowed Blount's body to be cremated before forensic tests had been returned from a laboratory. Officials defended the decision, saying they had taken all the tissue and blood samples they needed.

All of the tests came back negative for drugs and poisons, they said.

Yesterday, seven witnesses, mostly police officers, were observed entering the courtroom to testify at the inquest, which is closed to the public.

Alch allowed lawyer Margaret A. Burnham, who represents David James, Blount's former boyfriend, to question witnesses.

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and other poisons ultimately came back negative.

Police also did not begin questioning potential witnesses until the day the Globe called the homicide unit and the medical examiner's office about the case, which was three months after her body was found.

David Rodman, a spokesman for Suffolk County District Attorney Newman A. Flanagan, and Lt. Edward McNelley, chief of the police homicide unit, declined comment yesterday.

When told of the indictments, Phyllis Johnson, Blount's mother, said she was elated, but she tempered her remarks with her oft-repeated contention that authorities did not aggressively investigate her only child's death and botched the case because she was black.

Johnson compared the way authorities reacted to the death of another pregnant woman, Carol DiMaiti Stuart, just four months before her daughter was found dead. Johnson noted that every available detective was immediately put on the Stuart case, while officers did nothing in the wake of her daughter's death. "They just left me there to drip dry," Johnson said.

#### Media attention

She said she believed that no indictment would ever have been brought without the media attention that focused on the lack of a coordinated investigation by authorities.

"It would've taken a lot longer and probably nothing would've happened," said Johnson, 39, who has Co. for several years.

"But something has got to be done about the Boston Police Department and the medical examiner's office," Johnson said. "They need to put more care into the way they do their jobs."

The investigation of Blount's death was stalled from the beginning because it was treated as a "sudden death," not a homicide, which a forensic specialist consulted by the Globe said was a major error.

Dr. Werner Spitz, an internationally recognized pathologist who reviewed the autopsy report, said it

**Phyllis Johnson shows her emotions during a visit in March to St. Mary's Cen her 19-year-old daughter, Kasha Blount, was found dead in February 1990.**

But Gerald Feigin, the Suffolk pathologist who conducted the autopsy, disputed Spitz's findings. Feigin, a former student of Spitz, said at that time that his former teacher's theory was "crap" and "a shot in the dark."

Feigin, who insists that he conducted every possible test to determine how Blount died, said previously that he wanted police to deliver a witness to help solve the mystery. Police, on the other hand, said they were waiting for Feigin to rule the case a homicide before launching a full-scale investigation.

Last June, Johnson's attorney, Michael Doolin, asked District Attorney Newman A. Flanagan to conduct an inquest into Blount's case, which he said had been "hampered by sporadic investigation by the Boston Police Department and a questionable autopsy performed by the Suffolk County Medical Examiner's office."

A month later Flanagan agreed, but the inquest was not held until late October, when two dozen witnesses testified over three days before Judge Gerald Alch in Dorchester District Court.

The Globe learned that during testimony before Alch, police officers said that James had given Blount's black leather coat to his new girlfriend. Blount was wearing the coat the day she was last seen alive, witnesses said. The coat was not found with her body, according to a police report.

The officers also testified that James gave three different versions of how he got possession of the coat. Initially, he said he purchased the coat from a store, then said he bought it "hot" off someone on the street and finally told officers that he had stopped by Blount's house on Feb. 15 and got it from her.

#### James invoked Fifth

When called to testify at the inquest, James, through his lawyer, Margaret A. Burnham, invoked his Fifth Amendment right against self-

But Johnson, noting that Blount's baby, a girl, would have been a year old by now, said she remains cautious about whether James will ever be convicted of first-degree murder. She said she expects James' lawyer to attempt to plea bargain the case to a lesser charge because of the holes in the case caused by the faulty investigation.

Blount was last seen alive at she left her job as a sales clerk at Cherry, Webb & Touraine in Dedham.

As she rushed out the door after grabbing her pay check, Blount told co-workers that she was going shop-

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# Murder is unproven, so jury acquits man

Boston Globe, 5/6/92,  
p. 24

By Doris Sue Wong  
GLOBE STAFF

Unable to conclude that a homicide had occurred, a Suffolk Superior Court jury acquitted a Dorchester man yesterday of first-degree murder in the 1990 death of his pregnant ex-girlfriend.

The jury's verdict that Lennox David James was not guilty prompted the anguished mother of Kasha Blount, 19, of Dorchester, the dead woman, to rush from the courtroom, her face contorted in anguish.

Charles Ogletree, who with Margaret Burnham defended James, said it was clear that the inability of the medical examiner to determine the cause of Blount's death was a "linchpin" in the case.

"There was no credible evidence Kasha Blount died at the hands of David James," Ogletree said.

The jury deliberated about two hours before acquitting James at the end of a four-day trial. James had been free on bail.

Blount's body was found on a snowy and debris-laden dead-end street in St. Mary's Cemetery in Dorchester on the morning of Feb.

nant and her body apparently had been stripped of its coat, matching handbag and wallet, and jewelry.

The Globe reported four months after Blount's body was found that despite suspicions of foul play, her death remained a mystery because police and the medical examiner were waiting for each other to turn up more evidence.

Medical examiner Gerald Feigen was unable to determine a cause of death.

On the night before her body was found, as she left work between 5 and 5:30 p.m., Blount had told a co-

worker at a women's clothing store in Dedham that James was taking her to buy a baby carriage. Two of her coworkers testified that she was wearing a black leather coat and carrying a Liz Claiborne handbag with matching wallet when she left.

James' new girlfriend testified that James was at her house at 6 p.m. and presented her with some late Valentine Day presents, a black leather coat, matching handbag and wallet, later identified as belonging to Blount.

James gave three versions of how he had gotten the coat: that he bought it in a downtown store; that he bought it "hot" off the street; and that he took it from Blount a day earlier because she owed him money.

A juror who asked not to be identified said that the panel was unable to conclude that Blount had been killed at the hands of another, although the jury was troubled by James' different accounts of how he got Blount's leather coat and other belongings.

"He may have had something to do with it, but there was not enough to convict him," said the juror.

Feigen testified that Blount's death could be consistent either with suffocation or strangulation, or with natural causes such as heart failure due to stress on the cardiovascular system.

In addition, some eye fluid taken from Blount's body during the autopsy that could have helped determine the time of death was lost. Meanwhile, the medical examiner had allowed Blount's family to cremate her body.

Luke Tedeschi, a pathologist called by the defense, said the medical examiner conducted no tests on Blount's body for disease.

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... yesterday after the woman recounted her story, Norfolk District Attorney William Delahunt said yesterday.

Investigators confronted the woman following extensive interviews with witnesses and laboratory test results that showed that no sexual contact took place, Delahunt said at a news conference.

... announcement came six days after the woman reported she had been raped in a

he said. Norwood police acted properly in arresting the five men based on the woman's allegations last Saturday.

"The heinous nature of the crime mandated police take the action they did," Delahunt said.

Four men were charged with raping the woman in the Norwood apartment where one lived. Charges of rape were dropped against Jeffrey Flynn, Steven Ryan, and Mi-

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*Boston Globe, 5/9/92, p. 24*

## Blount's mother says case hurt by faulty police work

By Toni Locy  
GLOBE STAFF

The mother of a 19-year-old Dorchester woman who was found dead in February 1990 says that the case against her daughter's former boyfriend might have had a different outcome if police and the medical examiner's office had done a better job of investigating the death.

A Suffolk County jury on Tuesday acquitted Lennox David James of Dorchester of first-degree murder in the death of Kasha Blount. The case was hampered by the inability of the medical examiner's office to say with certainty that Blount was a victim of homicide.

"If they would've jumped on the horns quicker than quick, things may have been better," said Phyllis Johnson, Blount's mother. Blount was 5½ months pregnant when her body was found in a cemetery.

"If they would've come here to my house and talked to me and seen how we live and know that she was not that kind of a child, things might

have been different," Johnson said. She said she believed that authorities assumed her daughter's death was drug-related because she was black.

Johnson said she hopes something positive will come out of the case and is working with the group People of Color Against Homicide to develop a checklist to make sure that police and the medical examiner's office follow proper procedures when investigating a violent death.

Testimony during the trial showed that crucial fluids taken from Blount's body were lost and that some tests were not conducted because the medical examiner's office allowed Blount's family to cremate her body before results had been received on a number of preliminary tests.

Boston police and the medical examiner's office also did not begin full-scale investigations of Blount's death until four months after her body was found, when the Globe began making inquiries about the case.



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7:30 n.m.

## Court

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Continued from Page 1  
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## OFFICE OF CHIEF MEDICAL EXAMINER

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## Report of Death

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(or Disposition)

DATE: 11-7-93

TIME: 8:10 A.M.

REPORTED BY: Peter

Tewksbury OFF

ext - 2301

UNDERTAKER:

CLAIMANT:

Weems

RESIDENCE: Middlesex Shelter, Lowell, MASS.

PLACE OF DEATH: 291 Summer St. Lowell, MASS.

DATE OF DEATH: 11-6-93

~~PRONOUNCED BY (DR.)~~ EMT'S

DECLARED BY (EMTs)

TIME PRONOUNCED: 12:20 P.M.

DOB: 1-10-60

A/R/S 33-B-M

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DATE OF ADMISSION:

TIME OF ADMISSION:

RECEIVED BY: MEW

MEDICAL EXAMINER Dr. Feigin

D.O.A.

☒ YES / ☐ NO

BODY BROUGHT BY: Medonough F.H.

DATE:

11-6-93

TIME:

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TRAUMA: YES / ☒ NODRUGS: YES / ☐ NOALCOHOL: YES / ☐ NODECOMPOSED: YES / ☒ NO

DESCRIBE HOW DEATH OCCURRED: (What happened just before death, who found victim, position & location of body, what was done in E.R., etc.?) IF THERE IS TRAUMA: What are the injuries, date of injury, time and place of injury and how did injury occur. Last seen alive by whom, (also date & time) and any complaints.

DATE & TIME OF INJURY:PLACE OF INJURY:

Driver, Passenger, Pedestrian, Unknown

SEAT BELTS: YES / NO / UNKNOWN

- found dead at 291 Summer St. Lowell Mass in Rear. of house.  
- homeless person.

Cause of death:  
Manner of death:

Est. Hgt:

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Rigor:

Body Temp:

Toxicology: yes

Autopsy: yes

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Dr. Feigin

Tewksbury.

IF J.D. (WHO CERTIFY DEATH?)

DOCTOR'S  
NAME:TEL.  
NO:NOTIFIED:  
YES / NO

NEXT OF KIN:

ADDRESS:

RELATIONSHIP:

TELEPHONE NO: